

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

Confidential under California Constitution Article VI, Section 18, and Commission Rule 102

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted
7/31/2024 12:18 PM

Entry Number
8,155

* Indicates a required field

Your information

Complainant 1

Your name
Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email
constantine.mars@gmail.com

Your telephone number
(408) 518-0088

Your address
211 Hope St 391751, Mountain View, California 94041

Judge and conduct

Judge 1

Name of judge
Stephen Lowney

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

02/23/2024

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

On 02/23/2024 disqualified bribed crook ("judicial officer") Stephen Lowney filed "Order Striking Motion to Recuse" - in response to Statement of Disqualification filed against him on 02/20/2024.

"Order striking" states incorrect date (February 3 instead of February 20), and contains lots of lies of Stephen Lowney regarding "having no conflict" and "no reasons to recuse" (Evidence for Statement of Disqualification contains video and audio recordings and transcript of Lowney arguing with me, committing severe repetitive fraud on court in favor of Nancy Roberts who bribed him in January, and threatening to put me in jail to force me to abandon my son and give up passport and all documents of my son).

But besides general lies, this "Order striking" represents CRUCIAL INFORMATION ABOUT FRAUD ON COURT COMMITTED BY ORGANIZED CRIMINALS ("JUDICIAL OFFICERS") IN DEEPLY ROTTEN AND EXTREMELY CORRUPT SANTA CLARA COUNTY SUPERIOR COURT, UNDER PROTECTION AND SUPPORT OF PRESIDING JUDGE BETH MCGOWEN:

THEY "STRIKE DISQUALIFICATION" AND "SHOVE IT UNDER THE RUG" - THEREFORE TERRORIZING AND THREATENING LITIGANTS THAT "JUDGE WILL STRIKE DISQUALIFICATION, STAY ON THE CASE AND SEVERELY RETALIATE TO YOU" - WHICH GOES IN VIOLATION OF BOTH PROCEDURES OF CCP 170.3 AND CANONS OF JUDICIAL ETHICS.

Per CCP 170.3:

"(5) A judge who refuses to recuse himself or herself shall not pass upon his or her own disqualification or upon the sufficiency in law, fact, or otherwise, of the statement of disqualification filed by a party. In that case, the question of disqualification shall be heard and determined by another judge agreed upon by all the parties who have appeared or, in the event they are unable to agree within five days of notification of the judge's answer, by a judge selected by the chairperson of the Judicial Council, or if the chairperson is unable to act, the vice chairperson. The clerk shall notify the executive officer of the Judicial Council of the need for a selection. The selection shall be made as expeditiously as possible. No challenge pursuant to this subdivision or Section 170.6 may be made against the judge selected to decide the question of disqualification."

Stephen Lowney personally threatened to put me in jail if I will file any statement of disqualification against him or Nancy, and used that threat to force me to abandon my son Max Mars, and give up passport and all documents of my son - to facilitate international child kidnapping of my son outside of the United States to Ukraine in times of war. I requested custody review, child abduction prevention orders, DVRO to protect my son from being beaten by schizophrenic mother (video recording of her violence against my son on his birthday was filed with DVRO and custody review request for Court's attention),

and provided massive amount of evidence (more than 250 pages, including all supervised reports, witness statements, video and audio recordings confirming that my son was abducted by fraud DVRO in 2022 and prohibition of our contact is intentionally harmful abuse of judicial resources to enforce alienation of my son against me, primary parent, to force my son to accept further abduction to Ukraine in times of war).

Bribed crook Lowney denied evidentiary hearing, refused to hear DVRO 02/07/2024, and threatened to put me in jail to force me to abandon my son and give up passport and all documents of my son.

Disqualification of bribed crook Lowney in such situation was MANDATORY - especially taking into account that he denied all admissible evidence, including court reporter, statement of decision, video and audio recording of proceedings, media coverage, and even ADA accommodations.

In this absolutely clear situation of undeniable impermissible conflict of interest, Presiding Judge Beth McGowen, who was served Statement of Disqualification against Lowney 02/20/2024 and 03/11/2024, refused to act accordingly to her responsibilities, denied disqualification without consideration, refused to transfer case 22FL003144 to another department to allow matter to be heard by another, impartial judge - and clearly stated her position to SUPPORT AND ENDORSE BRIBERY, FRAUD ON COURT AND ORGANIZED CRIME UNDER LABEL OF LAW IN SANTA CLARA COUNTY SUPERIOR COURT.

On 03/20/2024 PAJAR Team on my request regarding status of disqualification of Stephen Lowney responded that there are no records of disqualification with Judicial Council - which confirms that both clerk and Presiding Judge Beth McGowen committed fraud on court, and concealed disqualification of Lowney in violation of CCP 170.3

Dear Commission on Judicial Performance and Chief Justice Patricia Guerrero,
I respectfully ask you for emergency help to :

1) OFFICIALLY DISQUALIFY AND NULLIFY ALL ORDERS OF THREE DISQUALIFIED BRIBED CROOKS ("JUDICIAL OFFICERS"): STEPHEN LOWNEY, ANDREA FLINT, JAMES TOWERY - AND PLEASE SEND ME OFFICIAL CONFIRMATION OF DISQUALIFICATION AND NULLIFICATION OF ALL ORDERS RETROACTIVELY BACK TO 09/13/2022 -

SEND CONFIRMATION TO EMAIL: CONSTANTINE.MARS@GMAIL.COM AND MAIL: 211 HOPE ST 391751, MOUNTAIN VIEW, CA 94041

2) TRANSFER CASE 22FL003144 TO SAN MATEO COUNTY COURT (OR ANOTHER COURT WITH PROVEN LOWER LEVEL OF CORRUPTION) TO ALLOW MATTER AFTER NULLIFICATION OF ALL ORDERS TO BE HEARD BY IMPARTIAL JUDICIAL OFFICER

3) GRANT PERMISSION FOR VIDEO AND AUDIO RECORDING ALL PROCEEDINGS ON THIS CASE 22FL003144, MANDATORY COURT REPORTER FOR ALL PROCEEDINGS, MANDATORY STATEMENT OF DECISION FOR ALL PROCEEDINGS, MEDIA COVERAGE OF ALL PROCEEDINGS.

4) DISMISS AND NULLIFY CURRENT DVRO ORDERS, AND ALL STIPULATIONS, INCLUDING STIPULATIONS 01/26/2023 (HARMFUL CUSTODY ORDERS OBTAINED BY FRAUD) AND 02/08/2023 (HARMFUL SPOUSAL SUPPORT STIPULATION OBTAINED BY FRAUD AND VOIDED BY NANCY ROBERTS IN A MONTH AFTER SIGNING IT)

5) PLEASE CONSIDER TO ORDER MANDATORY VIDEO AND AUDIO RECORDING OF ALL HEARINGS IN SANTA CLARA COUNTY COURT, FAMILY JUSTICE CENTER - AND ENFORCE REVIEW OF PROCEEDINGS BY INSPECTING SUPERVISING ENTITY, WITH IMMEDIATE TERMINATION OF JUDGES INVOLVED IN SEVERE REPETITIVE FRAUD ON COURT.

6) PLEASE SIMPLIFY PROCEDURE OF DISQUALIFICATION - AND TERMINATE JUDGES FROM COURT IMMEDIATELY FOR THE FIRST MOTION TO RECUSE. PLEASE ENSURE THAT INVESTIGATING SUPERVISING ENTITY, ASSIGNED BY JUDICIAL COUNCIL, WILL HAVE UNLIMITED AUTHORITY TO TERMINATE JUDGES WITHOUT EXTRA "HEARINGS" OR OTHER DELAYS - TO ENFORCE CLEANUP OF SANTA CLARA COUNTY COURT OF ORGANIZED CRIMINAL ELEMENTS, WHO ARE MAKING GOOD UNLAWFUL MONEY ON FRAUD ON COURT AND SEVERE ABUSE OF JUDICIAL RESOURCES.

7) PLEASE TERMINATE FROM COURT WITH DISHONORS DISQUALIFIED CROOKS STEPHEN LOWNEY AND ANDREA FLINT, AND THEIR "MAFIA BOSS" BETH MCGOWEN - AND BAN THOSE CRIMINALS FROM OCCUPYING ANY JUDICIAL OR POLITICAL JOBS INDEFINITELY

Please help to restore reputation of Santa Clara County Court by immediate cleanup from organized criminals, acting under color of law, and please help me to save my son from being beaten and abducted outside of the United States to Ukraine in times of war by mother who promised me to "bribe anybody who we may need" to "bury our son in Ukrainian soil, so you will never see him again".

Please see in Evidence PDF my Instagram, LinkedIn and photos of Max and whole family that I was trying to cherish whole and safe - before kidnapping with fraud DVRO in 2022.

Appreciate your prompt attention to this urgent matter.
Thank you

File Upload

Evidence for Complaint 2024-02-23 - Order Striking Disqualification (compressed).pdf

2024-02-23 [Lowney] Order striking Statement of Disqualification against Lowney.pdf

2024-02-20 Cover Letter to Presiding Judge.pdf

2024-03-11 Disqualification against Lowney Amended (printed).pdf

Letter from Presiding Judge Beth McGowen 2024-04-08.pdf

2024-03-20 PAJAR Response regarding status of Disqualification against Lowney.pdf